

Lord Redesdale, "may have agreed in the lifetime of a testator to accept the executorship, he is still at liberty to recede, except so far as his feelings may forbid it; and it will be proper for him to do so, if he finds that his charge as executor is different from what he conceived it to be when he entered into the engagement" (b).

2. *Heir of a trustee.*— But there does not appear to be any instance in which, after acceptance by the trustee, his *heir* has been allowed to disclaim the *estate*; and if the law permitted it, many instances would no doubt have occurred (c). The inconveniences of such a right of disclaimer would [before the recent Act (d) have been] great,

(b) *Doyle v. Blake*, 2 Sch. & Lef. 239.

(c) See *Humphrey v. Morse*, 2 Atk. 408.

[(d) 44 & 45 Vict. c. 41, s. 30,

under which the legal estate in realty devolves to the personal representative of the trustee as if it were a chattel real.]

*Judson v. Gibbons*, 5 Wend. 224; it may be a sufficient disclaimer if the trustees named fail to perform any of the duties required in the management of the trust estate, or to qualify as such trustees; *Williams v. King*, 43 Conn. 572; *Wardwell v. McDowell*, 31 Ill. 364; *Thornton v. Winston*, 4 Leigh. 152; *Marr v. Peay*, 2 Murph. 85; or they may disclaim in court or by pleadings; *Clemens v. Clemens*, 60 Barb. 366.

If the trustee has accepted the trust, he cannot afterwards free himself from it by putting in a disclaimer; *Shepherd v. M'Evers*, 4 Johns. Ch. 136; 8 Am. Dec. 561; *Armstrong v. Morrill*, 14 Wall. 138; *Sears v. Dillingham*, 12 Mass. 358; *Strong v. Willis*, 3 Fla. 124; *Jones v. Stockett*, 2 Bland. 409; *Cruger v. Halliday*, 11 Paige, 314; *Drane v. Gunter*, 19 Ala. 731; *Chaplin v. Givens*, 1 Rice, Eq. 133; but see *Robertson v. McGeoch*, 11 Paige, 640; he can be discharged only by a decree of court, by the consent of all interested parties, or in accordance with provision made in the instrument declaring the trust; *Sugden v. Crossland*, 3 Sm. & Gif. 192; *Webster v. Vandeverter*, 6 Gray, 428; *Perkins v. McGavock*, 3 Hayn. 265; *Ridgely v. Johnson*, 11 Barb. 527; *Diefendorf v. Spraker*, 10 N. Y. 246; *Re Bernstein*, 3 Redf. 20; mere abandonment will not relieve the trustee of his responsibility; *Thatcher v. Candee*, 3 Keyes, 157; *Cruger v. Halliday*, 11 Paige, 314; if a person dies without accepting or disclaiming, whether his heirs or representatives can disclaim is an unsettled question; *Goodson v. Ellison*, 3 Russ. 583; *Hill on Trustees*, 222; *King v. Phillips*, 16 Jur. 1080.

*Effect of disclaimer.*— If a trustee disclaim he loses any gifts or benefits attaching to the position; *Kirkland v. Narramore*, 105 Mass. 31; *Newcomb v. Williams*, 9 Met. 525; *Hall v. Cushing*, 9 Pick. 395; *Barrus v. Kirkland*, 8 Gray, 512; *Billingslea v. Moore*, 14 Ga. 370; *King v. Woodhull*, 3 Edw. Ch. 79; *Thayer v. Wellington*, 9 Allen, 283. If there is a complete disclaimer, the result is the same as if the appointment of the trustee had not been made; *Leggett v. Hunter*, 19 N. Y. 445; *Clemens v. Clemens*, 60 Barb. 366; if one of several disclaim, the whole estate is held by the others, *Ellis v. Boston*, H. &